

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ROBERT CASILLA ROSARIO; MARIA ROSARIO; ROBERT CASILLA
MARTINEZ; RAYMER CASILLA, by his parent and natural
guardian MARIA ROSARIO; and NURYA CASILLA,

SUMMONS TO THE COMPLAINT

Plaintiffs,

-against-

Index:

THE CITY OF NEW YORK; COMMISSIONER RAYMOND W. KELLY;
SGT. MARK SILEY, Tax # 909321; UC # C0091; UC # C0014;
DET. ALEX MUNOZ, Tax # 928830; DET. CHRISTINE SHEREN,
Tax # 910926; DET. ARTILES, TAX # 936149; DET. GIL;
DET. CARUSI; DET. SHERMAN; DET. ALUMUEZ; and P.O.
JOHN/JANE DOES # 1-10, the individual defendant(s) sued
individually and in their official capacities,

Basis of Venue occurrence of
incident: 598 East 164th
Street, Bronx, New York, and
residence of plaintiffs 275
East 201st Street, Apt. #
2B, Bronx, New York

Defendants.
----- X

To the above named defendants:

You are hereby summoned to answer the complaint in this action,
and to serve a copy of your answer or, if the complaint is not served with this
summons, to serve a notice of appearance on the plaintiff's attorney within
twenty days after service of this summons exclusive of the day of service where
service is made by delivery upon you personally within the state, or within
thirty days after completion of service where service is made in any other
manner. In case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 15, 2012

MICHAEL O. HUESTON, ESQ. Attorney
for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
BY: 

Michael Hueston, Esq.

Defendants' addresses: THE CITY OF NEW YORK and COMMISSIONER RAYMOND W. KELLY,
100 Church Street, New York, NY 10007; and SGT. MARK SILEY, Tax # 909321; UC #
C0091; UC # C0014; DET. ALEX MUNOZ, Tax # 928830; DET. CHRISTINE SHEREN, Tax #
910926; DET. ARTILES, TAX # 936149; DET. GIL; DET. CARUSI; DET. SHERMAN; DET.
ALUMUEZ; and P.O. JOHN/JANE DOES # 1-10, Shield 22596, and P.O. John Does 1-5,
Narcotics Borough Manhattan North, One Police Plaza, New York, N.Y. 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERT CASILLA ROSARIO; MARIA ROSARIO;
ROBERT CASILLA MARTINEZ; RAYMER CASILLA,
by his parent and natural guardian MARIA
ROSARIO; and NURYS CASILLA,

Plaintiffs,

-against-

THE CITY OF NEW YORK; COMMISSIONER
RAYMOND W. KELLY; SGT. MARK SILEY, Tax #
909321; UC # C0091; UC # C0014; DET. ALEX
MUNOZ, Tax # 928830; DET. CHRISTINE
SHEREN, Tax # 910926; DET. ARTILES, TAX #
936149; DET. GIL; DET. CARUSI; DET.
SHERMAN; DET. ALUMUEZ; and P.O. JOHN/JANE
DOES # 1-10, the individual defendant(s)
sued individually and in their official
capacities,

Defendants.

COMPLAINT

Index:

Basis of Venue occurrence of
incident: 598 East 164th Street,
Bronx, New York, and residence
of plaintiffs 275 East 201st
Street, Apt. # 2B, Bronx, New
York

Jury Trial Demanded

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Plaintiffs by and through their counsel Michael O.

Hueston, Esq., upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiffs
seeks relief for the violation of plaintiffs' rights secured by
42 U.S.C. §§ 1983; and the First, Fourth, Fifth, Sixth, and
Fourteenth Amendments to the United States Constitution.
Plaintiffs' claims arise from an incident that arose on or about
April 20, 2010 through November 23, 2010. During the incident,

Maria Rosario, are residents of the State of New York, Bronx County, living at living at 275 East 201st Street, Apt. # 2B, Bronx, New York; and plaintiff Nurys Casilla is a resident of Stafford Texas.

4. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

5. At all times alleged herein, defendant Raymond W. Kelly was the Commissioner of NYPD, who violated plaintiffs' rights as described herein.

6. At all times alleged herein, defendants Sergeant Mark Siley, Tax # 909321; UC # C0091; UC # C0014; Detective Alex Munoz, Tax # 928830; Detective Christine Sheren, Tax # 910926; Detective Artiles, Tax # 936149; Detective Gil; Detective Carusi; Detective Sherman; Detective Alumuez; and P.O. John/Jane Does # 1-10, were New York City Police Officers employed with the Narcotics Borough Manhattan North, located in New York County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

7. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

8. On April 20, 2010, at and in the vicinity of 598 East 164th Street, Apt. # 1, Bronx, New York, several police officers operating from the Narcotics Borough Manhattan North, located in New York County, New York, including upon information and belief, defendants Sgt. Mark Siley, Tax # 909321, UC # C0091; UC # C0014, Det. Alex Munoz, Tax # 928830, Det. Christine Sheren, Tax # 910926, Det. Artiles, Tax # 936149, Det. Gil; Det. Carusi, Det. Sherman, Det. Alumuez, and P.O. John/Jane Does # 1-10, at times acting in concert and at times acting independently, committed the following illegal acts against plaintiffs.

9. On April 20, 2010, at approximately 6:00 a.m. to at and in the vicinity of 598 East 164th Street, Bronx, New York, defendants Sgt. Mark Siley, Tax # 909321, Det. Alex Munoz, Tax # 928830, Det. Christine Sheren, Tax # 910926; Det. Artiles, Tax # 936149, Det. Gil, Det. Carusi, Det. Sherman, Det. Alumuez, and P.O. John/Jane Does # 1-10, without either consent, a lawful arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime unlawfully entered the apartment.

10. Except for plaintiff Nuys Casilla, and the plaintiffs resided at 598 East 164th Street, Bronx, New York.

11. The defendants, including Sgt. Mark Siley, Tax # 909321, Det. Alex Munoz, Tax # 928830, Det. Christine Sheren, Tax # 910926; Det. Artiles, Tax # 936149, Det. Gil, Det. Carusi, Det. Sherman, Det. Alumuez, and P.O. John/Jane Does # 1-10 broke through the door of the apartment.

12. Once the defendant officers entered the apartment, plaintiffs were not free to disregard the defendant officers' questions, walk away or leave the scene.

13. The defendant officers grabbed and pulled the plaintiffs from their beds.

14. The defendant officers forced the plaintiffs' hand behind their backs.

15. The defendant officers had their firearms drawn at the plaintiffs.

16. The defendant officers placed excessively tight handcuffs on the plaintiffs.

17. The plaintiffs asked the defendant officers to remove the handcuffs or loosen them, but the defendant officers refused and ignored their requests.

18. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force

against plaintiffs, since plaintiffs were unarmed, compliant, and did not resist arrest.

19. Plaintiffs suffered numbness and pain from the excessive use of force.

20. Those defendant officers who did not touch the plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

21. The defendant officers searched the apartment, ransacking it unnecessarily.

22. The defendant officers kept the plaintiffs in handcuffs during their search.

23. The defendant officers found no controlled substance, contraband, or weapons in the apartment or on any of the occupants, including the plaintiffs.

24. Instead of freeing all the plaintiffs and leaving the apartment, defendant officers Sgt. Mark Siley, Tax # 909321, Det. Alex Munoz, Tax # 928830, Det. Christine Sheren, Tax # 910926, Det. Artiles, Tax # 936149, Det. Gil, Det. Carusi, Det. Sherman, Det. Alumuez, and P.O. John/Jane Does # 1-10 falsely claimed that they found a firearm in Robert Casilla's bedroom.

25. As a result the defendant officers released all the plaintiffs (taking the handcuffs off of them), except for

Robert Casilla Rosario, whom they took outside in handcuffs and placed in a police vehicle.

26. The defendant officers drove plaintiff Robert Casilla to the 25th Precinct for arrest processing.

27. While Robert Casilla Rosario was at the Precinct the defendant officers subjected him to public strip search by making him take off his pants and expose genitals and rear-end.

28. Robert Casilla Rosario's strip-search occurred in front of other arrestees and was humiliating and degrading, and he saw other arrestees strip-searched in the same manner.

29. Again, no controlled substances, weapons, or contraband on his person.

30. After remaining at the 25th Precinct for many hours, the defendant officers transported Robert Casilla Rosario to Central Booking for arraignment where bail was set and he was detained at Rikers Island, C-74.

31. In order to cover up their illegal actions, the defendant officers, including Sergeant Mark Siley, Tax # 909321, UC # C0091, UC # C0014, Detective Alex Munoz, Tax # 928830, Detective Christine Sheren, Tax # 910926, Detective Artiles, Tax # 936149, Detective Gil, Detective Carusi, Detective Sherman; Detective Alumuez, and P.O. John/Jane Does # 1-10, pursuant to a conspiracy, initiated, and falsely and maliciously told the New

York County District Attorney's Office that the plaintiff had committed various crimes, by swearing out a false complaint and filing false police reports, including for the sale of a controlled substance on March 2, 2010, alleging involving UC # C0091, UC # C0014, and Detective Alex Munoz, Tax # 928830.

32. The defendant officers made these false allegations, despite the fact that they had no evidence that plaintiff had committed a crime, to cover up their misconduct, to retaliate against the plaintiff, to meet productivity goals and quotas, and to justify overtime expenditures.

33. Upon information and belief, the unlawful actions against the plaintiff were also based on profiling.

34. After having to defend the case for many months, the charges against plaintiff Robert Casilla were dismissed when he was acquitted on or about November 23, 2010, and the case terminated in his favor.

35. Upon information and belief, defendants Mark Siley, Tax # 909321, UC # C0091, UC # C0014, and Detective Alex Munoz, Tax # 928830 obtained any defective arrest and search warrant based on extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

36. Upon information and belief, defendants Mark Siley, Tax # 909321, UC # C0091, UC # C0014, and Detective Alex

Munoz, Tax # 928830 obtained any defective arrest and search warrant by failing to follow NYPD policy and procedures.

General Allegations

37. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

37. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

38. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

39. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of their rights.

40. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

41. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiffs' rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE)

42. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

43. Defendants unlawfully entered plaintiffs' home and detained and searched them without a lawful search or arrest warrant, or consent.

44. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SECOND CLAIM

(FALSE ARREST)

45. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein

46. Defendants falsely arrested plaintiffs without consent, a lawful arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

47. Accordingly, defendants are liable to plaintiffs for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

THIRD CLAIM

(UNREASONABLE FORCE)

48. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

49. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

50. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiffs were unarmed, compliant, and did not resist arrest.

51. Those defendants who did not touch plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

52. Accordingly, the defendants are liable to plaintiffs for using unreasonable and excessive force, pursuant

to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM

(FAILURE TO INTERVENE)

53. Plaintiffs repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. Defendants had a reasonable opportunity to prevent the violations of plaintiffs' constitutional rights, but they failed to intervene.

55. Accordingly, the defendants are liable to plaintiffs for failing to intervene to prevent the violation of plaintiffs' constitutional rights.

FIFTH CLAIM

(42 U.S.C. § 1983 VIOLATION OF EQUAL PROTECTION CLAUSE)

56. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

57. Defendants City of New York and Commissioner Raymond W. Kelly have implemented and are continuing to enforce, encourage and sanction a policy, practice and/or custom of unconstitutional entries into homes, excessive use of force, false arrests, and malicious prosecutions of City residents, including plaintiffs, based solely on race and/or national

origin. These unconstitutional entries into homes, arrests and prosecutions by NYPD officers have and are being conducted predominantly on Black and Latino individuals, on the basis of racial and/or national origin profiling. As a result, the NYPD's policy, practice and/or custom of unconstitutional entries into homes, excessive use of force, false arrests, and malicious prosecutions by NYPD officers violate the Equal Protection Clause of the Fourteenth Amendment. The NYPD's constitutional abuses were and are directly and proximately caused by policies, practices and/or customs devised, implemented and enforced by the City of New York, including: (a) the failure to properly screen, train and supervise NYPD officers, (b) the failure to adequately monitor NYPD officers and their entry into homes, uses of force, arrests, and prosecutions, (c) the failure to sufficiently discipline NYPD officers who engage in constitutional abuses, and (d) the overt and tacit encouragement and sanctioning of, and the failure to rectify the NYPD's unconstitutional practices.

58. Each of the defendants has acted with deliberate indifference to the Fourth Amendment rights of plaintiffs. As a direct and proximate result of the acts and omissions of each of the defendants, the plaintiffs' rights have been violated. By acting under color of state law to deprive plaintiffs of their

rights under the Fourth Amendment, the defendants are in violation of 42 U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

SIXTH CLAIM

(DELIBERATE INDIFFERENCE)

59. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

60. The City of New York and Commissioner Raymond Kelly have acted with deliberate indifference to the constitutional rights of those who would come into contact with and who are prosecuted by NYPD officers by: (a) failing to properly screen, train and supervise NYPD officers, (b) inadequately monitoring NYPD officers and their practices regarding entries into homes, uses of force, arrests, and prosecutions, (c) failing to sufficiently discipline NYPD officers who engage in constitutional abuses, and (d) encouraging, sanctioning and failing to rectify the NYPD's unconstitutional practices.

61. As a direct and proximate result of the aforesaid acts and omissions, the defendants have deprived plaintiffs of their Fourth and Fourteenth Amendment rights under 42 U.S.C. § 1983.

62. The acts and omissions of the defendants explained herein were intentional, wanton, malicious, reckless and oppressive, thus, entitling plaintiffs to an award of punitive damages. In engaging in such conduct, the defendants acted beyond the scope of their jurisdiction, without authority under law, and in abuse of their powers.

SEVENTH CLAIM

(UNLAWFUL STRIP-SEARCH - ROBERT CASILLA ROSARIO)

63. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

64. Plaintiff Robert Casilla Rosario was strip-searched at the 25th Precinct by the defendants without probable cause or reasonable suspicion. The strip search of plaintiff was also unlawful because it was carried out in a non-private manner.

65. Accordingly, the defendants are liable to plaintiff for their unlawful strip-search.

EIGHTH CLAIM

(DENIAL OF A FAIR TRIAL - ROBERT CASILLA ROSARIO)

66. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

67. The individual defendants are liable to plaintiff Robert Casilla Rosario because they intentionally conspired to

fabricate evidence against him, including omitting and/or manipulating evidence showing his innocence, fabricating testimony, and concealing exculpatory material depriving him of liberty without due process of law.

68. Furthermore, the individual defendants violated the law by making false statements by drafting and signing a sworn criminal court complaint and false police reports.

69. Furthermore, the individual defendants violated the law by gathering exculpatory evidence and manipulating such evidence to obtain a prosecution and unjust conviction, while performing the function of investigators.

70. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it well established that individuals who knowingly use false evidence at trial to obtain a conviction act unconstitutionally and is redressable in an action for damages under 42 U.S.C. § 1983.

71. The individual defendants are also liable to plaintiff because they intentionally created false information likely to influence a fact finder's or jury's decision by drafting and signing a sworn criminal court complaint and police reports, omitting and/or manipulating evidence, fabricating testimony and evidence, suppressing and concealing exculpatory

material and evidence, and forwarding and presenting false information to a court thereby violating plaintiff's constitutional right to a fair trial, and the harm occasioned by such an unconscionable action is redressable in an action for damages under 42 U.S.C. § 1983.

NINTH CLAIM

(MALICIOUS PROSECUTION - ROBERT CASILLA ROSARIO)

72. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

73. The individual defendants are liable to plaintiff Robert Casilla Rosario for malicious prosecution because prior to any grand action, with intent, knowledge, and malice, the defendants initiated a malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

74. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

75. The individual defendants initiating the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct and force plaintiff into informing on his criminal case co-defendants and other individuals.

76. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

TENTH CLAIM

(UNREASONABLE DETENTION - ROBERT CASILLA ROSARIO)

77. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

78. The individual defendants are liable, under 42 U.S.C. § 1983 and the Fourth Amendment, to plaintiff because plaintiff Robert Casilla Rosario had a right to be free from continued detention stemming from the mishandling or suppression of exculpatory evidence, and the individual defendants' refusal to investigate available exculpatory evidence. Accordingly, individual defendants violated plaintiff's right to be free from an unreasonable detention and their conduct shocks the conscience.

ELEVENTH CLAIM

(MONELL CLAIM)

79. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

79. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

80. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) unlawfully obtaining and executing search and arrest warrants; (2) unlawfully entering innocent person's homes based on unlawful warrants; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; (5) arresting persons in order to meet productivity goals, and justify waste and overtime expenditures; (6) wrongfully arresting individuals based on pretexts and profiling; (7) fabricating evidence against innocent persons; and (8) malicious prosecuting and denying individuals a fair trial and due process.

81. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

82. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and

belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

83. Further, defendants City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

84. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

85. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and

87. In August 2009, Proffer Levine released a report entitled *The Epidemic of Pot Arrests in New York City*, which stated: Perhaps most appalling is who the police are arresting for marijuana possession. United States government studies have consistently found that young whites use marijuana at higher rates than do young blacks or Latinos. But the NYPD has long arrested young blacks and Latinos for pot possession at much higher rates than whites. In 2008, blacks were about 26% of New York City's population, but over 54% of the people arrested for pot possession. Latinos were about 27% of New Yorkers, but 33% of the pot arrestees. Whites were over 35% of the City's population, but less than 10% of the people arrested for possessing marijuana. In 2008, police arrested Latinos for pot possession at four times the rate of whites, and blacks at seven times the rate of whites.

88. Furthermore, documented civilian complaints about officer misconduct show that African Americans are the most likely targets of abuse, but their complaints are largely ignored. According to the City of New York's Civil Complaint Review Board's ("CCRB") Status Report, dated December and January 2010, in 2010 African Americans were overrepresented as alleged victims of police misconduct. Although making up only 23% of New York City's population, they are 58.5% of the alleged

victims in CCRB complaints. On the other hand, whites and Asians were a disproportionately low percentage of alleged victims.

89. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

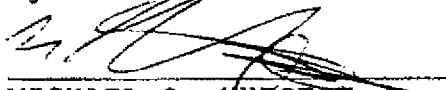
90. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

91. The City's failure to act resulted in the violation of plaintiffs' constitutional rights as described herein.

WHEREFORE, WHEREFORE, plaintiffs demand a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
November 15, 2012

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com
By:


MICHAEL O. HUESTON

VERIFICATION

I, ROBERT CASILLA ROSARIO, state under the oath, that I am the deponent and plaintiff in this action, and that the pleading is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



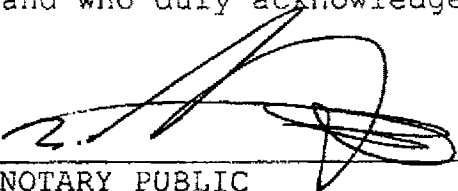
ROBERT CASILLA ROSARIO

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 15th day of November, 2012, before me personally came and appeared ROBERT CASILLA ROSARIO to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 05-HU073203
Qualified in Kings County
Commission Expires April 22, 2016 14

VERIFICATION

MICHAEL O. HUESTON, ESQ., an attorney at law, duly admitted to the Bar of the State of New York, affirms under penalties of perjury pursuant to CPLR § 2106 to the truth of the following:

I the attorney for plaintiffs Maria Rosario, Robert A. Casilla Martinez, and Raymer Alexander Casilla (16 years of age) by his parent and natural guardian Maria Rosario, and Nurys Casilla. I have read the forgoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, as to those matters I believe them to be true. I make this verification instead of the plaintiff pursuant to CPLR § 3020 because the plaintiff resides in a different county than where I maintain my office.

Dated: Brooklyn, New York
November 15, 2012



Michael O. Hueston, Esq.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

ROBERT CASSILLA ROSARIO, et al.

Plaintiffs,

-against-

CITY OF NEW YORK, et al.,

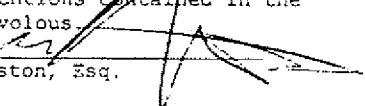
Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney
duly admitted to practice law in the State of New York,
certifies that, upon information and belief based upon
reasonable inquiry, the contentions contained in the
annexed document are not frivolous.

Dated: 11/15/12

Signature: 

Michael Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2012

....., Esq.

Attorney for.....